

“The court then has the power and the duty to enhance, or to reduce, the lodestar through the use of multipliers, by taking into consideration factors such as the novelty and complexity of the issues, the skill and expertise of counsel, the extent that the litigation precluded other employment and the contingent nature (or risk) of nonrecovery.” (*Robbins v. Alibrandi* (2005) 127 Cal.App.4th 438, 448.) Contrary to Plaintiffs’ contention, this case is not novel or complex. It is a routine lemon law case. While counsel has extensive lemon law experience which may have contributed to the outcome, that experience is reflected in the high hourly rates, and further enhancement is not necessary. Although counsel worked on a contingency basis, because attorney’s fees are mandatory under the Song Beverly Act, the risk that counsel would not recover for hours incurred was relatively low. Accordingly, the Court **DENIES** the multiplier.

iv. Costs

Plaintiffs assert they filed Memorandum of Costs on November 17, 2025 seeking a total of \$6,578.47. (Wirtz Decl., ¶41.) However, such memorandum was not found on eCourt. The memorandum of costs is not listed as a rejected document in eCourt either.

A “prevailing party is entitled as a matter of right to recover costs in any action or proceeding.” (Code Civ. Proc., § 1032, subd. (b).) Moreover, California Rules of Court rule 3.1700(a)(1) provides, “A prevailing party who claims costs must serve and file a memorandum of costs within 15 days after the date of service of the notice of entry of judgment or dismissal by the clerk under Code of Civil Procedure section 664.5 or the date of service of written notice of entry of judgment or dismissal, or within 180 days after entry of judgment, whichever is first. The memorandum of costs must be verified by a statement of the party, attorney, or agent that to the best of his or her knowledge the items of cost are correct and were necessarily incurred in the case.”

Here, Notice of Entry of Judgment was filed on June 10, 2026. Although no memorandum of cost was found on eCourt, FCA does not dispute the \$6,578.47 claimed by Plaintiffs. **Accordingly, the Court awards costs in the amount of \$6,578.47.**

The Court awards the Plaintiffs as follows: **\$8,365.00** in attorney’s fees to NTA and **\$21,465.00** in attorney’s fees to WL. Fees cost payable within 30 days of this order.

CASE #	CASE NAME	HEARING NAME
CVRI2402988	QUINN vs NATIONS RECOVERY SERVICE, INC.	MOTION FOR NEW TRIAL

Tentative Ruling:

A trial court has broad discretion to rule on the new trial motion. (*Hartt v. County of Los Angeles*, 197 Cal. App. 4th 1391, 1409, 132 Cal. Rptr. 3d 27 (2d Dist. 2011)) However, a new trial order can be granted only on a ground specified in the motion. (*Collins v. Sutter Memorial Hospital*, 196 Cal. App. 4th 1, 16, 126 Cal. Rptr. 3d 193 (3d Dist. 2011))

The court may grant a new trial when after an examination of the entire case, including the evidence, the court is of the opinion the error complained of has resulted in a miscarriage of justice. (Cal Const Art VI, § 13) When the judge presided over the trial, it is presumed he or she considered the entire case before ruling on the new trial motion. (See *Maher v. Saad*, 82 Cal. App. 4th 1317, 1324, 99 Cal. Rptr. 2d 213 (3d Dist. 2000))

Because the trial judge is familiar with the evidence, witnesses, and proceedings, he or she is in the best position to determine whether in view of all the circumstances, justice demands a retrial. (*Romero v. Riggs*, 24 Cal. App. 4th 117, 121, 29 Cal. Rptr. 2d 219 (4th Dist. 1994)) Thus, the determination of a motion for a new trial rests within the trial court's discretion and will not be disturbed on appeal unless a manifest and unmistakable abuse of discretion clearly appears.

A statement of reasons is not required when the court denies a motion for new trial. (*Stevens v. Owens-Corning Fiberglas Corp.*, 49 Cal. App. 4th 1645, 1657, 57 Cal. Rptr. 2d 525 (1st Dist. 1996))

Having presided over the trial and considered the entire case including all briefing on this motion for new trial the Court is of the opinion that no error complained of has resulted in a miscarriage of justice. Motion for new trial is denied.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2505390	MARTINEZ vs HERNANDEZ-VARGAS	MOTION TO CONTEST GOOD FAITH SETTLEMENT

Tentative Ruling:

Moving party: Defendant Waste Management Collection and Recycling, Inc. and Pablo Arroyo

Represented by: Bordin Semmer LLP

Responding party: Defendant Juan Pablo Hernandez-Vargas

Represented by: Law Offices of Scott C. Stratman